

IN THE SUPERIOR COURT OF [COUNTY WHERE THE ARREST OCCURRED – CONFIRM FROM YOUR OWN RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA,  
Plaintiff,

v.

JOHN DOE,  
Defendant.

DOCKET NO.: [TO BE CONFIRMED]

PETITION TO RESTRICT ACCESS TO CRIMINAL HISTORY RECORD INFORMATION FOR AN ARREST ON A FUGITIVE FROM JUSTICE WARRANT, PURSUANT TO O.C.G.A. § 35-3-37(j)(5)

#### STATUTORY AUTHORITY

O.C.G.A. § 35-3-37(j)(5) – Where an individual was arrested on a fugitive from justice warrant, the individual may petition the superior court in the county where the arrest occurred to restrict access to criminal history record information for that warrant. Notice goes to the arresting law enforcement agency and the prosecuting attorney, a hearing is held within 90 days if requested, and the court shall grant the order if it determines the circumstances warrant restriction and the harm otherwise resulting to the individual clearly outweighs the public's interest in the information being publicly available.

O.C.G.A. § 17-13-4 – The provision under which a fugitive from justice warrant is issued; § 35-3-37(j)(5) reaches an arrest made on a warrant issued as provided in this Code section.

#### I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Superior Court of Sample County (synthetic sample venue), State of Georgia, in the county where the arrest occurred, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Sample County (synthetic sample venue), State of Georgia.

#### II. PARTIES

3. Defendant is JOHN DOE, whose address is 1000 Sample Street, Atlanta, GA 30303.

4. Plaintiff is the State of Georgia.

#### III. FACTS AND CASE HISTORY

5. On or about 10/19/2021, Defendant was charged with Arrest on a fugitive from justice warrant issued at the request of another state (synthetic sample charge) by Sample County Sheriff's Office (synthetic).

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. On 10/22/2021, the matter was resolved with the following disposition: Arrest on the fugitive warrant; no Georgia prosecution followed (synthetic sample disposition).

8. The offense grade was: Not applicable – arrest on a warrant, no Georgia charge graded (synthetic).

#### IV. ELIGIBILITY ALLEGATIONS

9. Defendant may be eligible for record restriction on the following basis: record restriction under O.C.G.A. § 35-3-37(j)(5) (Defendant states the arrest was made on a fugitive from justice warrant in the county named above).

10. Defendant states the arrest identified above was made on a fugitive from justice warrant (synthetic sample answer).

11. Defendant states another state had asked for Defendant to be held, and describes in Defendant's own words what happened with the warrant and any extradition (synthetic sample answer).

12. Defendant states this Petition is filed in the superior court of the Georgia county where the arrest occurred (synthetic sample answer).

13. In Defendant's own words: this arrest on Defendant's record has been a barrier to employment (synthetic sample participant narrative).

IMPORTANT: Defendant may be eligible; this document does not guarantee eligibility or a court outcome.

#### V. REQUESTED RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the record restriction of the criminal history record information for the arrest made on the fugitive from justice warrant in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to restrict access to all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

#### VI. VERIFICATION

I, JOHN DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

\_\_\_\_\_  
JOHN DOE

1000 Sample Street, Atlanta, GA 30303

Date: \_\_\_\_\_

[NOTE: Date of birth and Social Security Number should be added by defendant if required by the applicable form or local court rules.]

#### VII. CERTIFICATE OF SERVICE

Notice to the arresting law enforcement agency and the prosecuting attorney. Service by certified mail, e-filing or hand delivery, certified in a certificate of service naming both recipients.

I certify that on \_\_\_\_\_, I served a copy of this Petition upon the arresting law enforcement agency and the prosecuting attorney, both of whom receive notice on this route at the following address:

[ARRESTING AGENCY AND PROSECUTING ATTORNEY SERVICE ADDRESSES – CONFIRM THE AGENCY DESTINATION WITH THAT AGENCY AND THE PROSECUTOR ADDRESS WITH THE CLERK]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

\_\_\_\_\_  
JOHN DOE

Date: \_\_\_\_\_

PROPOSED ORDER

IN THE SUPERIOR COURT OF [COUNTY WHERE THE ARREST OCCURRED – CONFIRM FROM YOUR OWN RECORD] COUNTY, STATE OF GEORGIA

STATE OF GEORGIA v. JOHN DOE

DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Georgia Crime Information Center of the Georgia Bureau of Investigation, the clerk of this Court, and the county and municipal law enforcement, jail and detention center records custodians for this matter, Sample County Sheriff's Office (synthetic), and all other criminal justice agencies with records pertaining to this matter are hereby directed to restrict access to all records relating to the above-captioned matter.

BY THE COURT:

\_\_\_\_\_  
J.

ATTACHMENTS

Attachments submitted with this petition:

- Certificate of Service
- Exhibit A – Copy of the final disposition obtained by the participant from the clerk
- [PROPOSED] ORDER (for the court's signature)

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Prepared by defendant using LegalEase RCAP. This is not an official court form.